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REVIEWS

Two reviews of Arthur Ripstein, *Force and Freedom: Kant's Legal and Political Philosophy* (Harvard University Press, 2009) 399 pp. ISBN 978-0674035065. £36.95, with a Response from Professor Ripstein

Innate Right and Acquired Right in Arthur Ripstein's *Force and Freedom*

Katrin Flikschuh*

Since the publication of Arthur Ripstein's book I have occasionally been asked whether, as a Kantian, I do not find it unduly libertarian. The first time I was asked this I assumed inattentive reading on the part of my interlocutor. The second time I worried that perhaps the inattentiveness was my own. The third time I was sufficiently concerned to re-read substantial portions of the book. Having re-read them, I still do not think Ripstein's interpretation of Kant's political philosophy libertarian (though this is not to judge the intrinsic merits of libertarianism one way or the other). There is, of course, the early emphasis on property rights as the ground of political obligation; there is also the reading throughout of external freedom in terms of 'independence' or 'being one's own master'. But the book equally emphasises entrance into the civil condition as a necessary condition of conclusive property rights; the two chapters on state functions—on so-called 'police powers' and redistributive policies respectively—go well beyond the idea of a minimal state usually associated with libertarianism; the concluding chapter essentially endorses, moreover, Kant's position of a no-right to revolution even against despotic (though not against barbaric) regimes.

Indeed, while the first five chapters seemingly champion individual freedom, the last six make a sustained case for a conception of public authority that views it

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as irreducible to the aggregate powers and interests of individuals as natural right-holders. If the first half of the book strikes many as excessively libertarian, the second half should strike them as unduly authoritarian. Ripstein might be decried as an 'authoritarian libertarian', or as a 'libertarian authoritarian'. This is how Kant's political philosophy was frequently characterised in the past—ie as a strange if not incoherent mix of libertarian and authoritarian features that celebrates individual freedom one moment and servile obedience to state authority the next.¹

This traditional reading of Kant the critical philosopher and Kant the subject-citizen of military Prussia as falling foul of one another within the pages of the *Doctrine of Right* is a consequence in part of the ill-organised and often obscure structure of argument of Kant's late work. The central and highly innovative property argument of the *Doctrine of Right* has only recently become the object of sustained scholarly attention and debate.² The crux of that argument lies in the distinction between innate right and acquired right and the derivation of political obligation from the latter. Anyone who fails to take seriously that distinction may well be led to interpret Kant as some kind of libertarian for whom the *natural* right to private property is of overwhelming significance in relation to political obligation. Yet for Kant there is no such natural right. Kant's departure from natural right theories of property is now widely acknowledged and the conclusions of scholarly reconstruction have begun to spill into normative political theory. Rawls-inspired Kantians are increasingly appropriating versions of what one might construe as Kant's socially grounded account of property rights, wresting it from its traditional association with libertarianism and aligning it alternatively with ambitiously egalitarian distributive schemes.³

Ripstein does not reduce Kant's political thought to versions of either current libertarianism or liberal egalitarianism. He makes a sustained case for the distinctiveness and contemporary relevance of Kant's position in its own right. The risk is that he ends up alienating two sets of readers: the Kant scholars who wanted more exegesis, and the contemporary political philosophers who wanted to hear more about Kant's relation to divergent perspectives in contemporary normative political theory. In my view, Ripstein's strategy has paid off: although compromises inevitably had to be struck along the way, the overall accomplishment of the book is singularly impressive. To Kant scholars and contemporary political philosophers alike Ripstein demonstrates two closely related points: first, that for Kant public lawmaking is irreducible to (the aggregate of) private interests, claims and concerns; second, that one will miss the distinctiveness of Kant's position if one fails to take seriously the thoroughly non-materialist nature of his philosophical approach.

¹ See eg Hella Mandt, 'Historisch-politische Traditionselemente im politischen Denken Kants' in Zwi Batscha (ed), *Materialien zu Kants Rechtsphilosophie* (Suhrkamp, 1976) 292–330; Kevin Dodson, 'Autonomy and Authority in Kant's Rechtslehre' (1997) 25 *Political Theory* 93–111.

² For a groundbreaking analysis of the centrality of Kant's property rights argument, see Reinhard Brandt, 'Das Erlaubnisgesetz, oder: Vernunft und Geschichte in Kants Rechtslehre' in R Brandt (ed), *Rechtsphilosophien der Aufklärung* (De Gruyter, 1981) 233–75.

³ See eg Alexander Kaufman, *Welfare State in the Kantian State* (Oxford University Press, 1999); Paul Guyer, 'Life, Liberty, and Property: Rawls and Kant' in P Guyer, *Kant on Freedom, Law and Happiness* (Cambridge University Press, 2005) 262–86.

Ripstein's unflinching appreciation of the latter is particularly noteworthy. Among Anglo-American approaches, even as sympathetic a reader as John Rawls found it hard to make much normative sense out of Kant's stringently formal conception of practical reasoning. Rawls downplayed the 'a prioristic' nature of Kantian philosophy, rendering it instead as a 'reasonable empiricism'.⁴ Among the most exciting aspects of Ripstein's alternative approach is his resolve to sustain a formal reading of Kant's philosophy of right whilst demonstrating the substantive import of such a reading. It is *because* Kant does not ground individual rights in materially defined needs, interests or values that he does not conceive of public authority as an aggregate of individual voices each pressing its particular claims alongside or jointly with those of all others. Similarly, it is *because* the general united will has practical reality as an idea of pure practical reason for Kant that he does not need to simulate actual or hypothetical collective will formation.⁵ The idea of the general united will is the idea of public law: 'The creation of a rightful condition is *lege*, deemed by law, rather than the result of a particular affirmative act, and Kant concedes that it begins by a deed of "seizing supreme power"' (196).

To be in the civil condition is to be in a condition governed by laws of external freedom—by positive laws legislated in accordance with the universal principle of Right. The obligation to enter into such a condition flows from the claim to freedom of choice and action by each under conditions of unavoidable co-existence. Under those conditions, my agency 'changes the normative situation of others' (152). I do so unintentionally and unavoidably. The case of property acquisition most readily demonstrates this. In claiming an unowned object of my choice as mine I change your normative situation vis-à-vis that object. I do so not by violating any rights of yours regarding that object, but by claiming the authority to put you under an obligation henceforth to refrain from using the object because I have chosen it as mine. 'Kant's point is that the theory of property raises a deeper problem of how one person's act can place another person under a new obligation. How can an act done entirely of your own initiative, to which others are not parties, have binding effects on them?' (153–4).

The short answer is that it can't: no 'unilateral' or individual will has authority to impose an obligation on another without the other's consent. Nor can consent come into it. I cannot avoid acting and changing your normative situation as a result of my action. And yet I have as little natural authority to put you under a binding obligation as you have natural authority either to consent or to withhold consent in relation to my claim. Property claims and their effects are systemic. In taking any (unowned) external object of my choice into my possession I unintentionally change not only your normative situation but also that of everyone else. You and everyone else do likewise. You, too, along with me and everyone else, claim particular objects of your choice, changing my and everyone else's normative situation

⁴ Cf John Rawls, *Lectures on the History of Moral Philosophy*, Barbara Herman (ed) (Harvard University Press, 2000) 143–321.

⁵ This seems to me to be an advance of Kant's beyond Rousseau, to whose idea of the general will he is clearly deeply indebted. Cf Katrin Flikschuh, 'Elusive Unity: The General Will in Hobbes and Kant' *Hobbes Studies* (forthcoming).

relative to that object. So we all unintentionally and unavoidably change one another's normative situation. Yet none of us have a natural authority to put others under a coercible obligation. Only an 'omnilateral' or public will can have this sort of authority (155). For Ripstein as for Kant, the claim to freedom of choice and action, hence to property, is vindicable only in the civil condition. Whenever I acquire an object of my choice, claiming your obligation henceforth to refrain from using that object, I implicitly invoke the idea of an omnilateral or public will as the only kind of will with the relevant authority to impose such obligations on everyone. In acquiring I in effect declare my readiness to enter into the civil condition with you.

Ripstein's controversial claim is that no separate step is required between my acknowledging my freedom-cum-acquisition-based obligation towards you and my entering into the civil condition with you. You and I need not confer with one another about the desirability or advantageousness of collective entrance into such a condition. Nor do we need to supplement the practical reality of the *idea* of the general united with an actual or hypothetical act that simulates collective will formation. Given unavoidable reciprocal influence of action you and I *are* obligated. Talk about consent or mutual agreement to enter into the civil condition adds nothing. To the contrary, 'the creation of a rightful condition cannot require a private transaction of any sort, because the rightful condition is the only context in which procedures can be valid, so that the legitimacy of an outcome depends on how it came about' (190). Persons can consent or mutually agree to enter into the civil condition only under the idea of such a condition: the idea of public law necessarily precedes any agreement regarding its supposed establishment and so cannot be the outcome of such agreement. 'Kant's basic strategy is to show that a rightful condition can give authority to *laws rather than human beings*, so that the actions of particular human beings in making, enforcing, and applying laws can be exercises of public rather than private power, and so are instances of an omnilateral will' (191, emphasis added).

Ripstein's affirmation of the sufficiency of the mere *idea* of public law is audacious, not least in view of the high premium which contemporary Kant-inspired contractarians place on reasonable agreement and co-legislation as conditions of political legitimacy.⁶ In fact, libertarians and liberal egalitarians alike tend to assume the necessity of consent or agreement. Individual right-holders or mutually (dis)interested co-operators are thought of as pooling their naturally held *private* authority to found a mutually advantageous *public* condition. Both approaches envisage a transfer from private to public authority. For Kant, by contrast, no one *has* a natural authority to put anyone else under a coercible obligation. Hence no amount of private pooling will yield the qualitatively distinct idea of a public authority as the only legitimate source of coercive law-making. This is not to say that there is no relation between private rights claims and public authority; however the

⁶ See eg Andrews Reath, 'Legislating for a Realm of Ends: The Social Dimension of Autonomy' in Andrews Reath, Barbara Herman and Christine Korsgaard (eds), *Reclaiming the History of Ethics: Essays for John Rawls* (Cambridge University Press, 1997) 214–40.

order of priority is the reverse of the standard conception. Ripstein's repeated reminders that civil society is a necessary condition of conclusive property rights makes this abundantly clear: private right claims do not ground public authority; rather, private rights claims presuppose a public authority as a necessary condition of their possibility.

Among the most salutary consequences of Ripstein's insistence upon the qualitative difference between actual persons' private wills and the idea of the general united will is the reinstatement of a genuinely *public* conception of political authority. All too often, and not least among Kant-inspired contractarians, the idea of public authority is reduced to that which all individual citizens would reasonably agree to as valid, or desirable, or right for themselves.⁷ The concern is that any decisions taken by relevant public authorities maintain a live connection with the (hypothetical) interests and concerns of all those directly affected by those decisions. This is highly implausible in practice, of course: no public policy-making is reducible, in either intent or content, to the interests and concerns of each of those affected by it. In Ripstein's account public decision-making regains a degree of independence from individuals' claims and interests.⁸ This is especially evident in the pair of chapters dealing with the public preconditions of private property rights and with redistributive and equal opportunity policies respectively. Ripstein uses the public provision of an infrastructure to contain and connect pieces of private property as an illustration of a more general point regarding the relation between private rights claims and public goods provision: 'the structural argument for roads ... shows that rightful private property in land has public preconditions' (252); '*public* terms of access to roads are just structural features of public guarantees that there will be no *private* terms of access to other persons' (251). Public authorities are concerned with establishing and maintaining a 'system of freedom'. The reasonable agreement of particular individuals is neither here nor there where structural or systemic provisions are at stake: no individual citizen, however reasonable, has the right sort of competence in relation to systemic, ie public decision-making. This is anti-individualist or authoritarian as little as the earlier chapters are excessively individualistic or libertarian: the point is to ground public authority in individual rights claims whilst demonstrating the necessary legislative independence of such a public authority from any particular (collection of) individual rights claims.

⁷ For an incisive critique of such readings of Kant see Onora O'Neill, 'Political Liberalism and Public Reason: A Critical Notice of John Rawls, *Political Liberalism*' (1997) 106 *The Philosophical Review* 411–28.

⁸ This is not to say that the legislator is not constrained by citizens' justified rights claims. The public adjudication and regulation of conflicting rights claims is nonetheless a decision for the legislator, not for each individual citizen taking the public or private perspective individually. For Kant it is the relevant public authority, not each individual citizen, that must ask itself whether or not a proposed positive law *could* be legislated by the people conceived as a *totality* (ie a complex whole) rather than as an aggregate of individuals. The idea of the general united will is the criterion of right judgment for the relevant public authority, not for each affected individual. (Cf Kant, *Theory and Practice* 8: 297; *Perpetual Peace* 8:381; *Metaphysics of Morals* 6:315.)

If I do have a disagreement with Ripstein's reading of Kant, it concerns his approach to innate as opposed to acquired right. Despite his essentially formal analysis of the relational structure of individuals' reciprocal property claims and the related conception of a public authority as the necessary condition of their systematic realisation, some substantive content does in the end intrude upon that analysis. It enters through Ripstein's reading of innate right. Ripstein glosses the innate right to freedom of each as each person's entitlement to independence from another's power of choice. Here independence is rendered formally and relationally; Ripstein speaks of it as a 'contrastive idea' (15, 108): my innate right to independence is equivalent to your lack of natural authority over me. Yet he goes on to claim that my innate right to independence is grounded in my capacity for purposiveness. This idea is specified non-relationally as the capacity of each to set and pursue chosen ends. Admittedly, Ripstein is concerned with the *capacity* for purposiveness, not with particular purposes an agent might adopt. Nonetheless, the specification of independence as the central quality of innate right and the explication of its centrality in terms of a capacity for purposiveness strongly imply a view of innate right as grounded in a capacity which each has in themselves, ie non-relationally.

The problem is that the non-relationally conceived capacity for purposiveness ends up competing with the relational conception of right understood in terms of the reciprocally coercive claims and counter-claims of agents who cannot avoid affecting one another. Where exactly is right located: relationally in unavoidable co-existence, or individually in purposiveness? Ripstein's position here strikes me as systematically ambiguous. This ambiguity blurs the distinction between innate and acquired rights, as evidenced in Ripstein's characterisation of innate right as including a right of control over the use of one's own body. In general, Ripstein follows Kant in treating property rights as acquired, ie non-original rights whilst viewing the innate right to freedom of each as an original, non-acquired right. He further makes it clear that acquired rights are not derivable from innate right directly—the right to possession of external objects of one's choice is not analytic to one's original or innate right to freedom (150). The latter is nonetheless said to provide 'the basis for any further rights' (31). Though this last claim is plausible in itself, Ripstein's characterisation of the innate right comes very close to attributing property rights in their own bodies to persons—and this despite his endorsement of Kant's denial of a possible ownership relation to oneself:

Much of the structure of rights to property parallels my rights with respect to my own person, since it too is something which I can use to set and pursue ends—indeed, I could not set and pursue ends without it. I do not have property in my own person; I just am my own person. The fact that my own person lacks the 'mine or yours' structure of property explains the inherent limits on my possessory rights, so that, for example, I may not alienate my own person. Despite these differences, I have rights in my person like those I have in external things. Like rights in property, those rights are rights that I have against all other persons. And like rights in property, they extend to both possession and use. (68)

Your innate right specifies 'your right to your own person' (57). You have this right in virtue of your capacity to set ends and purposes for yourself. You thus have an innate right to be your own master, meaning that others are not entitled to use you as they see fit and for their own purposes. 'Your freedom to choose your own purposes just is your freedom to decide how to use the powers you have' (40); 'I usurp your powers if I exercise them for my own purposes, or get you to exercise them for my purposes' (43). Indeed, even 'touching a person without her consent uses her for a purpose she didn't authorize ... Your person—your body—is yours to use for your own purposes, and if I take it upon myself to touch you without your permission, I use it for a purpose you haven't authorized' (45).

The theme of touching without consent comes up several times in the context of Ripstein's discussion of innate right. The inspiration for it lies, I suspect, in Chapter 1 of the *Doctrine of Right*. Kant there distinguishes between empirical and intelligible possession, claiming that in the absence of a concept of intelligible possession—possession of an object without holding it—someone who wrests an apple from my hand would not be violating my property right in the apple but would merely be violating my innate right. In wresting the apple from my hand the aggressor would be interfering with my person, but once the apple had successfully passed from my hand into that of the aggressor I would have no further claim to it on the basis of a conception of merely empirical possession.⁹ The thought of someone violating my innate right by wresting apples from my hand might be taken to imply a conception of my innate right as including my rights to use of my body. However, a more natural interpretation is to say that it indicates my right to bodily integrity. In contrast to the former, a right to bodily integrity is not akin to a property right. If we want to preserve a consistent distinction between innate and acquired rights we should avoid conceiving of a right to physical integrity as a property right in one's body. Touching you without your consent may still be contrary to your *innate* right—but not because you are entitled to use your own body as you see fit (this may in fact conflict with duties towards oneself), but rather because others may not use it as they see fit.

But why does it matter that we keep innate right 'property-free', as it were? Does a lot really hang on it? I believe it does matter—and not just for the relatively unimportant reason that talk about body-rights invites unintended libertarian connotations. The systematic reason in favour of avoiding the inclusion even of anything merely akin to property rights in one's body under the innate right is that including such rights undermines a relational reading of acquired rights. If we say that the innate right to freedom of each includes each person's rights over his own body, we at least strongly imply a person's innate authority to enforce this right against others (179). There is then one type of property right—body rights—that does not require the idea of a general united will as the appropriate enforcement power of all such rights considered systematically. Two potential problems now surface. The first concerns the relevance of entrance into the civil condition relative to the innate right of each: as self-enforcer of my innate right to freedom, what

⁹ *Rechtslehre* 6:248.

reason do I have for entrance into the civil condition with regard to that right? Do we not risk leaving innate rights out in the cold—in the pre-civil condition—if we build into it self-enforceable body rights? Ripstein claims not, but I think he struggles with the duty to enter into the civil condition on grounds of innate right (176–81). He says that ‘your right to your own person is not provisional’ (177), meaning that it is conclusively enforceable by yourself in the pre-civil condition (179). The reasons for entering into the civil condition on the grounds of innate right then appear to be prudential reasons, having to do with problems of subjective interpretation and lack of assurance: ‘The difficulties for innate right in the state of nature—indeterminacy, lack of conclusive defence or nonaggression agreements, and the impossibility of a remedy in cases of completed wrongs—do not make the innate right provisional in the sense of being unenforceable. They do, however, stand in the way of its being one we might call “conclusively conclusive”, that is, forming an integral part of a consistent set of rights’ (180). We come very close, here, to Lockean natural rights thinking where entrance into the civil condition is ultimately based on considerations of greater convenience.

The second problem with including body rights under the innate right comes to the fore when we return to Ripstein’s characterisation of the innate right to freedom of each ‘as the basis of any further rights’. Even if acquired rights are not an entailment of innate right, they do presuppose innate right: the innate right is the basis of any further rights. But if we do make innate right the basis of any further rights and if we include under it a non-relational right over our own bodies, it may be hard to sustain a fully relational reading of acquired rights. For we are then at least inviting the thought that one’s rights in external objects of one’s choice are a more or less natural extension of one’s rights in the use of one’s own body.¹⁰ This is not, I think, a thought which Ripstein intends to encourage, and yet his claim that ‘the structure of rights to property parallels my rights with respect to my own person’ (68) does encourage it.

Ultimately the culprit seems to me to be the capacity for purposiveness. Ripstein seems to be led towards a non-relational reading of the innate right of each, including a self-enforceable right over the use of one’s own body, because he is tempted by purposiveness. It is hard to see what might have tempted him other than the seeming ‘thinness’ of relationally construed independence considered all on its own. To say that everyone has a right to independence from another’s power of choice over him may be thought to beg the question as to why everyone has such a right. One ready answer would seem to be that everyone has this right because everyone has the capacity to exercise their own power of choice—to set their own purposes and ends. So purposiveness supplies a positive specification that supplements the negative specification of independence as a claim to non-domination by others. The problem is that this simultaneously introduces a shift from a relational to a non-relational rights conception.

In the *Doctrine of Right* Kant does not thematise the capacity for purposiveness; indeed, he explicitly excludes it from consideration. The question as to our purposes

¹⁰ Cf Samuel Wheeler, ‘Natural Property Rights as Body Rights’ (1980) XIV *Nous* 171–94.

is a question of ethics. It forms no part of a *Doctrine of Right* which concerns itself solely with the formal and external relation of the capacity for choice or one with regard to that of another.¹¹ The innate right to freedom of each is specified relationally, referring neither to a capacity for purposiveness nor to bodily rights:

Freedom (independence from being constrained by another's choice), insofar as it can coexist with the freedom of every other in accordance with a universal law, is the only original right belonging to every man by virtue of his humanity. This principle of innate freedom already involves the following authorizations which are not really distinct from it: innate equality, that is, independence from being bound by others to more than one can in turn bind them; hence a human being's quality of being his own master (*sui iuris*), as well as being a human being beyond reproach (*iusti*), since before he performs any act affecting rights he has done no wrong to anyone; and finally, his being authorised to do to others anything that does not in itself diminish what is theirs.¹²

Innate equality, original innocence (*Unbescholtenheit*), strict reciprocity of juridical obligation—these are the qualities that attach to innate right. They are all relational—ie they specify the treatment which, from a juridical perspective, each person can rightfully expect from all others independently of any act of his. There is no claim to property in one's own person—indeed, there is not even an obvious claim to legitimate self-defence regarding one's innate right.¹³ All this is not to deny the innate right's frustratingly obscure status and function in the text. The innate right is first introduced in the appendix to the Introduction to the *Doctrine of Right*. Although Kant's initial specification of it is entirely relational—setting out what juridical treatment we can demand of one another 'innately' (ie, independently of any act of ours), he subsequently does slip into more possessive language, distinguishing between innate and acquired rights in terms of what is mine internally and externally respectively.¹⁴ This clearly does imply some sort of possessive relationship between me and myself. Worse, having made the distinction between innate and acquired rights, indicating the centrality of the innate right to everything that follows, Kant concludes the section by saying that 'the innate right can be

¹¹ *Rechtslehre* 6:230–1.

¹² *Rechtslehre* 6:237–8.

¹³ In the *Doctrine of Right* the only explicit reference to self-defence occurs under the discussion of 'emergency rights' in the Appendix to the Introduction dealing with 'equivocal right'. Kant seems unsure as to whether self-defence can qualify as a right strictly speaking, given the inability of a public authority to adjudicate such situations. He gives the example of two shipwreck survivors, who both try to hold on to a plank of wood that can support only one of them. Each tries to push the other off. Kant's view seems to be that while it is not within the rights of either to push the other off, neither can be held culpable for doing so either. Nor could a public authority judge the matter between them. Kant's example is not, admittedly, a case of self-defence, strictly speaking, since neither party acts as aggressor against the other so much as self-preserver (though in the specific example, they are perhaps both simultaneously self-preservers and aggressors). However, Kant's example does raise the question as to whether we can coherently speak of self-defence against an aggressor as a juridical act. When I defend myself against someone who tries to violate my physical integrity I may simply be warding them off; the question is, does this defensive move involve an omnilateral judgment on my part? It may well do—but it might not. For a highly instructive discussion, which concludes in favour of self-defence as a juridical act, see Joachim Hruschka, 'Die Notwehr im Zusammenhang von Kants Rechtslehre' (2003) 115 *Zeitschrift für die Gesamte Strafrechtswissenschaft* 201–23.

¹⁴ *Rechtslehre* 6:238.

thrown into the prolegomena and the division of the doctrine of right can refer only to what is externally mine or yours'—ie, to acquired rights. True to his word, the remainder of the *Doctrine of Right* is focused entirely on acquired the class of acquired rights.

To date, the status and function of innate right remains an interpretive puzzle in relation to the rest of the *Doctrine of Right*.¹⁵ Given the overall orientation of Ripstein's approach to the text—his endeavour to demonstrate the originality and relevance of Kant's legal and political thought to contemporary debates—one can hardly expect him to delve into sustained textual exegesis and reconstruction regarding the innate right to freedom of each. From this perspective, Ripstein's designation of the innate right as a semi-natural right to independence that is grounded on the capacity for purposiveness and that includes bodily rights may be a plausible shortcut out of what remains, exegetically, an intractable issue. Yet my view still is that purposiveness is one thought too many; Ripstein does not in fact need it and his lip-service even to this relatively underdetermined substantive value tends to distract from his otherwise enviably sustained focus on the formal structure of juridical relations between persons and their necessary public preconditions in Kant. Ripstein's book represents an impressive, informative and highly insightful reading of Kant's political philosophy which, particularly in its focus on the independent authority of the idea of public law, is bound to provoke enough controversy and contention in the field of contemporary political philosophy even without redundant talk about purposiveness.

¹⁵ Compared to the steadily growing literature on property rights in Kant, sustained treatments of the innate right of each are still quite rare. This may be beginning to change. Like Ripstein in his book, Sharon Byrd and Joachim Hruschka similarly accord the innate right central importance in their recent study. Cf Sharon Byrd and Joachim Hruschka, *Kant's Doctrine of Right: A Commentary* (Cambridge University Press, 2010) esp 77–93.